

Shashi Bhushan Singh v. State of U.P. and Others

Allahabad High Court · Single Judge · 28 June 2023 · 2023 SCC OnLine All 340 · Writ - C No. 19594 of 2023 · **Writ petition disposed of; petitioner to deposit Rs. 4,00,000 within 30 days and then file a representation under Clause 6.5 (to be decided within one month); disconnected supply to be restored on the deposit**

HEADNOTE

A consumer disputing the accuracy of a current/revised bill must pursue the statutory remedy of a representation before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, rather than have the writ court adjudicate the bill. The petitioner's poultry-unit meter was installed on 29.3.2016 but supply began only on 25.11.2018; the Grievance Redressal Forum had directed billing from the date of supply at the agricultural tariff, and the Ombudsman passed a final order after the petitioner did not object to the revised bill. Faced with a further dispute that the revised bill (Rs. 9,09,686) still did not reflect the agricultural tariff, the Court relegated the petitioner to a Clause 6.5 representation, directing a deposit of Rs. 4,00,000 (with restoration of supply) and decision of the representation within one month.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Dispute over a current/revised bill pursued by representation before the Executive Engineer under Clause 6.5

QUESTION

Where a consumer disputes that a revised bill conforms to a Forum/Ombudsman direction (here, the agricultural tariff from the date of supply), should the writ court adjudicate the bill or relegate the consumer to Clause 6.5?

HOLDING

Relegate to Clause 6.5. A consumer disputing the current bill has the remedy of a representation before the concerned Executive Engineer under Clause 6.5. The Court disposed of the writ directing a deposit of Rs. 4,00,000 within 30 days, liberty thereafter to file a Clause 6.5 representation to be decided within one month, and restoration of the disconnected supply on the deposit (backed by an indemnity bond for any balance found due on revision). ¶ 9-12

LIMITING FACTS

Meter installed 29.3.2016, supply from 25.11.2018; Forum had ordered billing from date of supply at agricultural tariff; Ombudsman's final order (8.2.2023) after no objection to the revised bill; remaining grievance was that the bill did not apply the agricultural tariff.

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A dispute over the correctness of a current/revised bill is to be raised by representation before the Executive Engineer under Clause 6.5, not adjudicated in writ jurisdiction. ¶ 9-11

relegate-to-statutory-remedy Writ court declines to fix the bill and relegates the consumer to the Clause 6.5 mechanism, conditioning restoration of supply on a part-deposit. ¶ 10-12

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE REVISED BILL CORRECTLY APPLIED THE AGRICULTURAL TARIFF FROM THE DATE OF SUPPLY

Left to the Executive Engineer to decide on the Clause 6.5 representation within one month. ¶ 8-11